

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Peña	Team: Team # 1	CCRB Case #: 200305337	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 07/14/2003 3:00 PM	Location of Incident: 47th precinct	18 Mo. SOL 1/14/2005	Precinct: 47
Date/Time CV Reported Mon, 07/14/2003 5:15 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/14/2003 5:15 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rodriguez	21191	926015	

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Discourtesy: PO Robert Rodriguez spoke rudely to § 87(2)(b)	A . Complaint Withdrawn

Synopsis

On 6/15/03, § 87(2)(b) was involved in a car accident. After calling the police, § 87(2)(b) stated that no police officers responded. She spent the night at the hospital along with the other party involved. On 6/16/03, the other party filed a report, which concerned § 87(2)(b) since she went to the precinct the day after the accident and claims they would not allow her to file her own.

When § 87(2)(b) called the precinct on 7/14/03, to inquire how the other party was able to file a report, the officer, later identified as PO Rodriguez told § 87(2)(b) that he would not be able to help her. § 87(2)(b) asked the officer "Since you cannot help me, and you keep putting me on hold, can I speak to a Sergeant or Lieutenant?" The officer told § 87(2)(b) "Since you feel that I cannot help you, help this!" PO Rodriguez then hung up the phone on her. § 87(2)(b) called back the precinct and asked PO Rodriguez for his name and at that point he put her on hold for forty-five minutes. § 87(2)(b) called another number for the precinct and spoke to a Lieutenant who gave her the name and shield number of the officer that had just hung up on her.

Mediation was offered to § 87(2)(b) and she refused. § 87(2)(b)

§ 87(2)(b) feels that this officer needs a class on courtesy.

After speaking to § 87(2)(b) three times, and driving up to Eastchester in the Bronx, which was a scheduled appointment, § 87(2)(b) withdrew her complaint. § 87(2)(b) expressed her desire to withdraw her complaint in writing. While she also refused to make any statements or have her voice on tape, she did however sign a modified verification letter. This letter stated that she wishes to withdraw her complaint, and is doing so of her own free will. It further stated that she was not coerced or threatened to do so. Team Manager Cecelia Holloway reviewed the modified withdrawal letter. A withdrawal letter was mailed to her and will be included in the case file upon receipt.

It is recommended that this case be closed as complaint withdrawn.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: